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TENTATIVE RULING

Defendants Jacquelynn L. Hansen and Law Office of Jacquelynn L. Hansen, APC's Demurrer is SUSTAINED with thirty (30) days leave to amend as to all causes of action.

Defendants Jacquelynn L. Hansen and Law Office of Jacquelynn L. Hansen, APC's Motion to Strike is DENIED as MOOT.

Plaintiff Jennifer McCaney may amend her complaint only as authorized by the Court's order and may not amend the complaint to add a new party or cause of action without having obtained permission to do so. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.)

Defendants Jacquelynn L. Hansen and Law Office of Jacquelynn L. Hansen, APC to give notice.

REASONING

Defendants Jacquelynn L. Hansen and Law Office of Jacquelynn L. Hansen, APC ("Defendants") demur to the three causes of action for legal malpractice, breach of fiduciary duty, and breach of contract, and they move to strike Plaintiff Jennifer McCaney ("Plaintiff")'s prayer for attorney fees within her complaint.

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967), but the Court does not "assume the truth of contentions, deductions, or conclusions of fact or law" (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 125).

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter,

or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Demurrer

First Cause of Action: Legal Malpractice

“To state a cause of action for legal malpractice, a plaintiff must plead (1) the duty of the attorney to use such skill, prudence, and diligence as members of his or her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage resulting from the attorney’s negligence.” (*Kumaraperu v. Feldsted* (2015) 237 Cal.App.4th 60, 66, quotation marks omitted.)

In the first cause of action, Plaintiff alleges that Defendants were retained to perform services for Plaintiff’s family law case, and they owed Plaintiff a duty to use skill in their representation, but Defendants breached their duty of care to her by failing to competently represent Plaintiff in the actions. (Compl. ¶¶ 46-49.) Plaintiff provides an incomplete sentence of the acts and omissions that breached the duty of care in paragraph 50, failing to list any of those acts or omissions, and she then states harm she suffered in paragraph 51, but the failure to name any specific acts or omissions makes it such that the Court cannot determine the nature of the purported breaches and any causal connection between those purported breaches and Plaintiff’s harm. For that reason, Defendants’ demurrer to the first cause of action is SUSTAINED with thirty (30) days leave to amend.

Second Cause of Action: Breach of Fiduciary Duty

“The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, breach of fiduciary duty, and damages.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820.)

In the second cause of action, Plaintiff alleges that Defendants had a fiduciary relationship with Plaintiff and had a duty to disclose their acts of negligence, but they failed to do so, they effectively abandoned Plaintiff, and the failure to submit necessary documents caused Plaintiff harm. (Compl. ¶¶ 60-63.) While Plaintiff has alleged some facts related to purported omissions, the causation element remains unclear, i.e., Plaintiff does not sufficiently link the theory of breach to the theory of harm, providing only conclusory statements. Thus, Defendants’ demurrer to the second cause of action is also SUSTAINED with thirty (30) days leave to amend.

Third Cause of Action: Breach of Contract

To state a cause of action for breach of contract, Plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

Plaintiff alleges that she and Defendants were parties to a written fee agreement (Compl. ¶ 93), and Plaintiff performed under the agreement (Compl. ¶ 95), but Defendants breached the agreement by failing to competently represent Plaintiff (Compl.

¶¶ 97-99). Notably, Plaintiff provides no contract or description of any provision of the contract she alleges were violated. If a breach of contract claim "is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.) Accordingly, Defendants' demurrer to the third cause of action is SUSTAINED with thirty (30) days leave to amend.

Motion to Strike

Given the Court's ruling on demurrer, Defendants' motion to strike is DENIED as MOOT.